

going on. Apart from the timing-crunch considerations to be addressed next, it can see no significant advantage to plaintiff or detriment to defendant from the delays. And conversely, the principal timing concern for defendant has to do with the opportunity to move for summary judgment – and it may fairly be said that defendant, waiting until a trial date has been set and a certification motion is imminent, has itself been pretty damn non-diligent in getting to such a motion (assuming it isn't just bluffing about summary judgment).

Scheduling Issues

The only argument Scottsdale adduces now that has any serious bite to it is that it stands to be caught in a time crunch. Trial is set for August 17, 2026, shortly before the five-year statute runs out. Accordingly, the deadline for filing a summary judgment motion is April 22. Scottsdale says it's unwilling to stipulate to waive the five-year deadline, though it proffers no non-gamesmanship-related reason for such refusal.

Scottsdale's lead argument is that if Bautista is now allowed into the case, Scottsdale will have to seek full discovery from her. But plaintiff offers to ensure that Bautista will provide full interrogatory responses and document production within a week. Scottsdale will presumably want to depose Bautista too. Given that the substance of her claim is basically the same as Cannon's in all but the minor details, however, that is unlikely to be very difficult or to take very long.

Scottsdale's purported concern about summary judgment is more substantial, if taken seriously. Given that this case has been kicking around for years with no such motion having been pursued, and that the case isn't yet to the point of class certification, however, it's not clear how seriously it should be taken. In any event, Scottsdale's full opportunity to seek summary judgment should and can be protected by requiring, as a condition for granting this motion, that plaintiffs agree to a reasonable stipulation to alter the deadline for filing such a motion. (And as for the trial date, while the Court does not question Scottsdale's right to insist on the five-year deadline if it sees fit, the Court observes that if Scottsdale finds this chronological box too confining, it knows where to find the key.)

Law & Motion Add On

**19. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION RE MICHAEL DEAN VISTNES, MD AND DEAN VISTNES, MD, INC
FILED BY: VISTNES, M.D., MICHAEL DEAN
*TENTATIVE RULING:***

See Line 4 above.